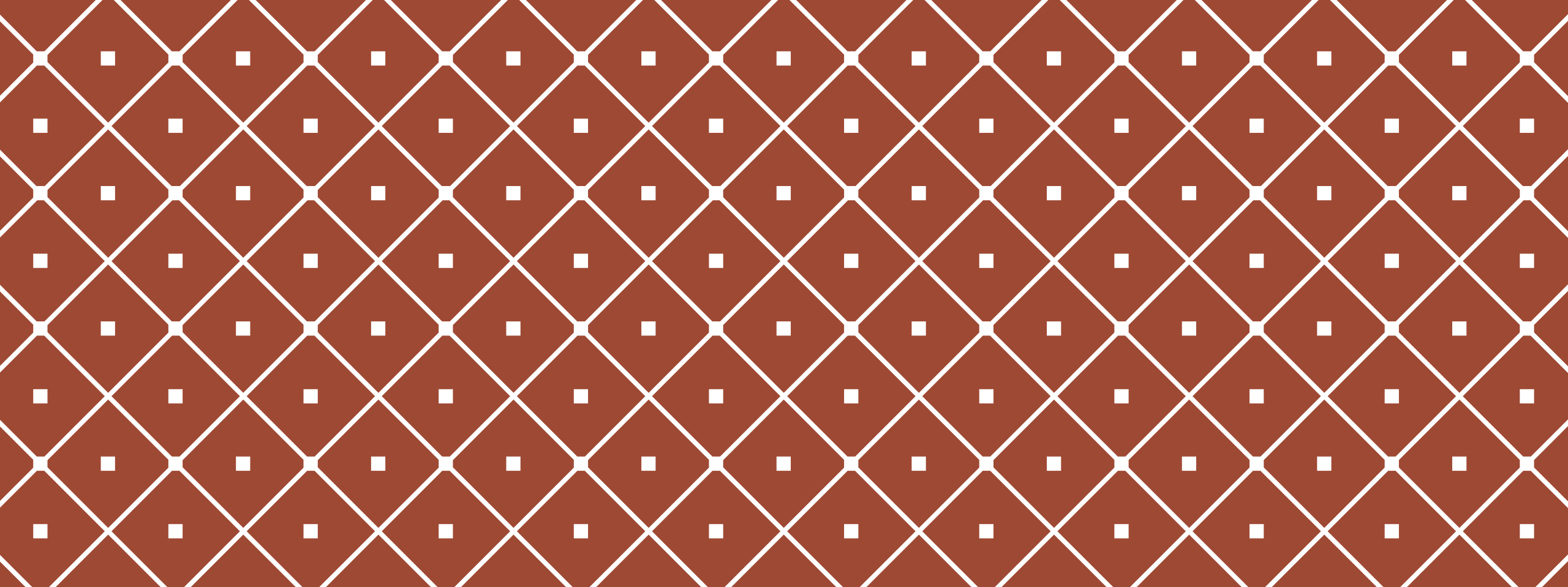




RES SUBJUDICE

- Apoorva Sharma
Assistant Professor, UPES

SEC. 10 — RES SUBJUDICE



Stay of civil suits



Applicability: trial of a suit and NOT INSTITUTION.



Court can pass interim orders.



Applies to appeals and revisions.



RES? — thing/matter



SUBJUDICE?- under consideration/pending judicial enquiry

OBJECT

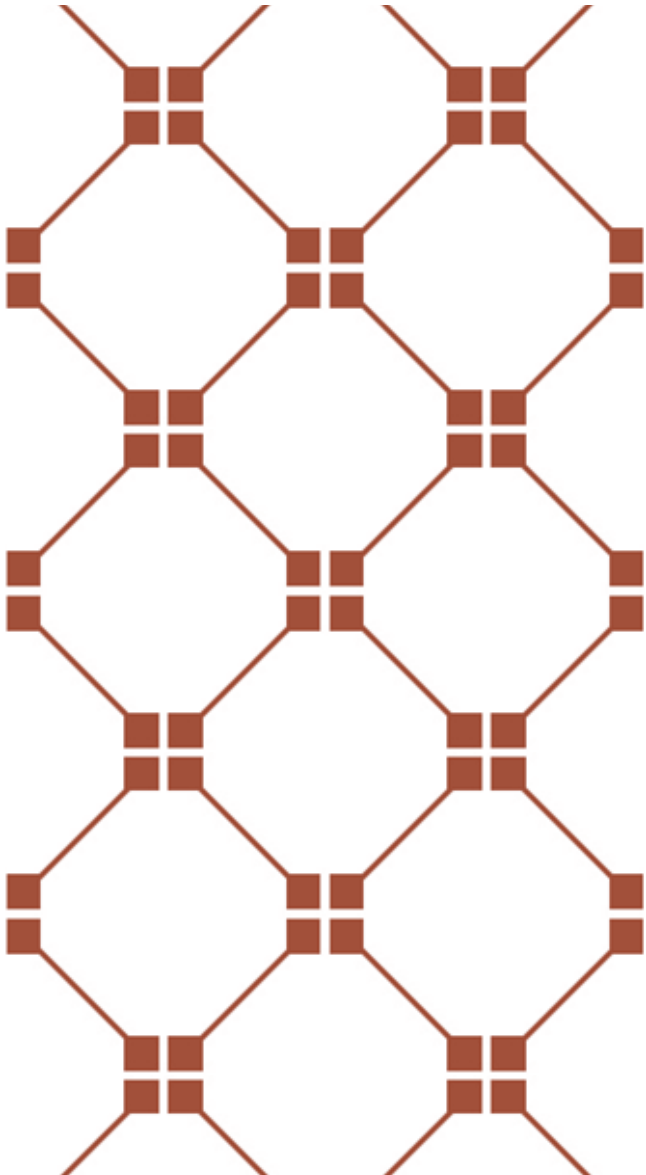
Pukhraj D Jain V. G Gopal – prevent court of concurrent jurisdiction from simultaneously passing 2 parallel decrees – could be contradictory

Rule of procedure

Decree passed in contravention is not nullity.

ESSENTIALS

1. There must be two suits – one previously instituted and one after
2. Matter in issue in subsequent suit must be DIRECTLY & SUBSTANTIALLY in issue in prev suit.
3. Both suits b/w same parties or their representatives.
4. Previously instituted suit must be pending
5. Court where prev suit instituted must have jurisdiction to grant relief
6. parties litigating under the same title in both suits



No court shall PROCEED with trial. No bar on institution.

Explanation- pendency of suit in foreign court does not preclude Indian courts from trying a suit founded on same COA.

Test? – whether the decision in a prev instituted suit would operate as Res Judicata in subsequent suit.

Prev. instituted suit? – Ranje Ram V. Nand Lal – suit instituted prior in time and not decided earlier.

Matter in issue? – for Res Subjudice- the entire matter in controversy – not just one issue

MATTER IN ISSUE

National institute of MH & NS v. C Parmeshwara – 2005 SC – matter in issue in both suits must be identical and not merely similar. Substantially the same. Not necessary that all issues are reproduced but directly in issue.

What is matter in issue?

SAME PARTIES

Parties between whom matter in issue exists.

IDENTITY of parties – not exactly the same parties

Claiming under the same party or litigating under them.

Merely adding another party against whom no separate or substantial issue is raised would not make sec. 10 inapplicable.



Manohar Lal V. Seth Hiralal – sec.10 is mandatory

Exceptions? – 1. suit pending in foreign court

2. interim orders

3. summary suits- trial begins after court grants leave

No appeal – not a decree, not an appealable order

Revision



RES JUDICATA- SEC. 11

Rule of conclusiveness of judgment.

No to TRY any suit/issue in which matter directly and substantially in issue has been same in a former suit between the same parties or under whom they/any of them claim, litigating under the same title – in a competent court to try such subsequent suit and has been heard and finally decided.

Satyadhyan Ghosal V. Deorajin Debi – RJ req. to give finality to judgment. Matter on a question of fact/law has been decided between two parties in a suit/proceeding – decision is final.

BAR OF SUIT

Bar to try same issue again.

Object? –

1. NEMO DEBIT BIS VEXARI PRO UNA ET EADEM CAUSA- no man should be vexed twice for the same cause.

2. INTEREST REPUBLICAE UT SIT FINIS LITIIUM- it is in interest of state that litigation should come to an end.

3. RES JUDICATA PRO VERITATE OCCIPITER- a judicial decision must be accepted as correct.

ESSENTIALS

A. 2 parallel suits- of which one has been decided

Explanation 1 - former suit – decided prior in time irrespective of whether instituted prior in time or not

B. Matter in issue – facts on which right is claimed, and law is applied to determine the case

Explanation 3 – matter alleged by one party and denied or accepted by the other, expressly or impliedly

Directly? Means as opposed to incidentally

Substantially? Means essential or material to the case



Test? – matter directly and substantially in issue depends on whether a decision on such an issue would materially affect the decision of the suit.

Explanation 4- matter constructively in issue – any matter which might and ought to have been made a ground of defence or attack in such a former suit shall be deemed to have been a matter directly and substantially in issue.

Object? – compel parties to take all grounds of defence/attack.

UP V. NAWAB HUSSAIN



Might? – party had knowledge

Ought? – depends on case

Finding on matter not in issue – no RJ

ISSUE? – of fact, of law, mixed – Mathura Prasad V. Dossibai Jeejeebhoy

Pure question of law unrelated to facts which gives rise to rights – not RJ

Where COA is different or law changed since earlier decision – does not operate as RJ.

SAME PARTIES

RJ between co-defendants – Munni Bibi V. Triloki Nath –

1. there must be conflict of interest between co-defendants
2. must be necessary to decide that conflict in order to give relief to P.
3. question between co-defendants must have been finally decided
4. co-defendants were necessary or proper parties in former suit.

Eg- Ishwer Singh V. Sarwan Singh

Mar Narayan Tewari V. Cantt Board Ramgarh 2024



Explanation VI- Representative Suit

Where persons litigate bona fide in respect of public right or of public right claimed in common for themselves and others, all persons interested in such right shall be deemed to be persons claiming under the persons so litigating.

Constructively barred by RJ.

Test? – 2 possible contradictory decrees.

COND. REPRESENTATIVE SUIT.

1. There must be a right claimed by two or more persons in common to themselves and others not expressly named.
2. Not named parties must be interested in such right.
3. Bona fide litigation + on behalf of all parties.
4. If suit under O1R8 – all condition must strictly be complied with

Test? – identity of title and not subject matter

COMPETENT COURT

Court which decided the former suit must have jurisdiction to try the 2nd suit

If not – no RJ

Explanation VII- issue heard and finally decided by court of limited jurisdiction, competent to decide such issue shall be RJ in 2nd suit notwithstanding that such court was not competent to try such 2nd suit.

Time of deciding competence- when 1st suit was brought, not the 2nd.



Eg- RJ when party by adding some property increases value of suit deliberately.

Test for competence generally – whether second suit could have been decided by 1st court.

Explanation 2 – competence of court is determined irrespective of any provisions as to right of appeal from the decision of such court.

Bar of RJ does not depend upon the existence of right of appeal but on whether the same issue has been heard and finally decided.

HEARD & FINALLY DECIDED

PANDURANG RAMCHANDRA V. SHANTIBAI RAMCHANDRA- final decision on which court must have exercised its judicial mind. On merits.

Q- 1. suit dismissed on non-joinder, misjoinder of parties

2. ex parte

3. failure to produce evidence

4. suit not properly framed

5. on default of P's appearance



What operates as RJ is the ratio of what is fundamental to decision.

Explanation V, VII

CASE LAWS

1. Sheodan Singh V. Daryao Kumar – conditions of RJ – 1. matter should be same, 2. achieved finality – want of jurisdiction/default/technical failure/could not furnish security/ valuation or court fee issue/ want of cause of action/ failure to produce doc etc. – not on merits
2. RM Sundaram V. Sri Amman Temple 2022- plea of RJ – must place on record previous suit pleadings with respect to identity of cause of action
3. PREM KISHORE V. BRAHM BAKSH 2023- previous suit should have been decided on merits. Order closing proceedings in a case is not a final decision. 09R8, 017R3.



Yadaiah V. Telangana 2023- fundamental v. collateral decision – without which decision itself cannot stand independently.